



PARTNER AGENT AGREEMENT

Dated: [_____]

BY AND BETWEEN

UNIWIZER (POWERED BY EDUCRATS GLOBAL)

AND

[AGENT PARTNER]

AGENT RECRUITMENT PARTNER ("AGENT PARTNER")

This **RECRUITMENT PARTNER AGREEMENT ("Agreement")** is entered into on **[DATE]** by and between **UNIWIZER (POWERED BY EDUCRATS GLOBAL)**, a company incorporated under the (Indian) Companies Act and having its registered office at *ACACIA E- 1801, OMAXE R2, GOMTI NAGAR EXTENSION, LUCKNOW- 226 002.* (hereinafter referred to as the "**Company**", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its assigns and successors in title) of the **ONE PART**;

AND

[Agent Partner] and having its registered office at **[Agency Registered Address]** (hereinafter referred to as "AGENT PARTNER", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include, in case of a sole proprietorship firm, the heirs, executors, successors in title, administrators and permitted assigns of the proprietor / in case of a partnership firm, the surviving partners for the time being and their heirs, administrators and permitted assigns / in case of a private limited company, its permitted assigns and successors in title, as the case may be), of the **OTHER PART**;

The Company and AGENT PARTNER are hereinafter collectively referred to as the "Parties" and individually referred to as a "Party."

WHEREAS

A. The Company is engaged in the business of offering admission and visa counselling for overseas education in universities.

B. The AGENT PARTNER has approached the Company to offer counselling services with the intent to recruit

C. students for enrolment in the Universities in the United States, U.K., New Zealand, Australia, Canada and other destinations through the company.

D. Now, therefore, the Parties are executing this Agreement to record their mutual understanding relating to the a fore-mentioned arrangement, the terms and conditions thereof and other incidental matters arising therefrom.

NOW, THEREFORE, IN CONSIDERATION OF THE MUTUAL COVENANTS SET FORTH HEREIN AND FOR GOOD AND VALUABLE CONSIDERATIONS, IT IS AGREED BETWEEN THE PARTIES AS FOLLOWS:

1. DEFINITIONS & INTEAGENT PARTNERRETATIONS

1.1. In this Agreement (including the recitals), unless repugnant to the context or meaning thereof, the following terms shall have the following meaning:

1.1.1. **"Code of Conduct"** means code outlining the standards for AGENT PARTNERS to follow in an effort to maintain high professional standards in the marketing and delivery of education services which safeguard the interests and welfare of students.

1.1.2. **"Code of Practice"** means Act with diligence and in a professional manner and use its best endeavors to fulfil the duties described herein and maintain reasonable technical and practical knowledge regarding the Services.

1.1.3. **"Destination Markets"** include United States, U.K., New Zealand, Australia, Canada and any other destination, as may be identified by the Company in writing from time-to-time.

1.1.4. **"Intellectual Property"** or **"IP"** means (a) any intellectual property or proprietary rights in any jurisdiction (even beyond the Designated Markets or Territory), whether owned or held for use under license, whether registered or unregistered, including such rights in (i) all works of authorship (whether or not copyrightable), all copyrights, all moral rights and all applications, registrations, and renewals in connection therewith, (ii) the Trademarks, all other trademarks, service marks, certification marks, trade dress, logos, trade names, and corporate names, typeface and all applications, registrations, and renewals in connection therewith, (iii) all inventions, invention disclosures, all improvements thereto (whether patentable or unpatentable and whether or not reduced to practice), and all issued patents, pending patent applications, and any and all divisions, continuations, continuations-in-part, reissues, continuing patent applications, re-examinations and extensions thereof, any counter parts claiming priority therefrom, utility models, design patents, utility models, patents of importation/confirmation, certificates of invention, certificates of registration and similar rights, (iv) all trade secrets and confidential business information and rights to limit the use or disclosure thereof by any person (including forms, materials, guides, manuals, ideas, research and development, know-how, formulas, compositions, manufacturing and production processes and techniques, technical data, designs (including colour palette), drawings, specifications, customer and supplier lists, pricing and cost information, and business and marketing plans and proposals, training and webinars), (v) all computer software (including but not limited to downloadable software applications), operating systems, data files, source and object codes, user interfaces, manuals, databases, technical specifications and documentation and (vi) Internet domain names (including the Website and links) (b) all copies and tangible embodiments of any of the foregoing (in whatever form or medium), (c) claims, causes of action or defenses relating to the enforcement of any of the foregoing, and (d) the goodwill associated with any of the foregoing.

1.1.5. **"Services"** means an online platform provided by the Company for the processing, screening, and lodging of applications to enrolment into universities with access to a range of appropriate application and enrolment compliance tools.

1.1.6. **"Territory"** unless otherwise specified, means that country or countries and locations in that country or countries where the AGENT PARTNER is located to be able to deliver the required services and comply with the responsibilities and warranties of recruitment partner set out in Clause 3 and Clause 4 of this Agreement.

1.1.7. **"University" or "Universities"** means universities and colleges with whom the Company has tie ups through its overseas education division for admissions.

2. RIGHTS OF AGENT PARTNER

2.1. The Company hereby grants AGENT PARTNER the right to market and offer in the Territory where the AGENT PARTNER operates, and any other territories as agreed by the Parties in writing.

3. Representations and Warranties of AGENT PARTNER

The AGENT PARTNER hereby represents and warrants to the Company that:

3.1. all documents received from prospective students are / will be authentic and true. The Company may ask for original or duly notarized documents from the AGENT PARTNER.

3.2. it has not and shall not:

- 3.2.1. engage in dishonest practices.
- 3.2.2. mislead a student by making unrealistic suggestions about studying in any of the Company's Destination Markets.
- 3.2.3. facilitate the enrolment of an international student who does not comply with the conditions of a student visa.
- 3.2.4. engage in false or misleading advertising and recruitment practices.

The AGENT PARTNER acknowledges that doing so may result in the termination of this agreement.

3.3. there are no proceedings, pending, threatened or decided, against staff, directors, contractor, or other parties related to the AGENT PARTNER who are directly or indirectly involved in the operation of services related to the Company or this Agreement.

4. RESPONSIBILITIES OF AGENT PARTNER

The AGENT PARTNER agrees and undertakes that it shall:

4.1. comply with and act in accordance with the Code of Conduct and Code of Practice;

4.2. use the Company's platform and services to enroll students into the Universities and/or provide related services according to the terms and conditions herein.

4.3. act with diligence and in a professional manner and use its best commercial endeavors to fulfil the duties described herein and maintain reasonable technical and practical knowledge regarding the Services.

4.4. use promotional materials provided by the Company from time to time solely for the purpose of marketing and promoting the Services.

4.5. submit enrolment ready applications or referral leads to the Company for the purpose of application and admission into the Universities.

4.6. ensure that all required application fees and charges related to the application are paid directly to the University or to the Company, at the discretion of and upon directions issued by the Company in writing.

4.7. comply with all relevant legislation, applicable laws and policies relating to the recruitment of students in Destination Markets and Universities.

4.8. ensure that all the relevant University's policies are accurately explained to a prospective student prior to acceptance of offer from the same. This includes but is not limited to the following:

- **4.8.1.** Refund policies
- **4.8.2.** Successful completion of enrolment
- **4.8.3.** Visa application refusal or visa grant cancellation
- **4.8.4.** Transfer to another provider
- **4.8.5.** Early cessation of their studies
- **4.8.6.** Termination of studies for non-payment of fees or disciplinary reasons
- **4.8.7.** Unsatisfactory course progress or course attendance
- **4.8.8.** Deferral or suspension of studies

4.9. not claim that the agreements by the Company with Universities are the agreements entered into by the AGENT PARTNER, unless the AGENT PARTNER has, in its own capacity, signed an agreement directly with such university or college.

4.10. not advertise, use, or promote University's logos or branded materials without the direct approval of the Company or concerned University in writing.

5. ROLES AND RESPONSIBILITIES OF THE COMPANY

The Company shall endeavor that:

5.1. the application for study placement to various Universities will not be delayed unnecessarily for reasons in the Company's control.

5.2. the Company will process all commission within 30 days after receipt of payment from the concerned University and the subsequent receipt from the AGENT PARTNER of a complete and accurate invoice in accordance with Clause 6 hereof.

6. COMMISSION

6.1. The Company shall pay to the AGENT PARTNER commission where the AGENT PARTNER sources the student in accordance with this Agreement and provides an enrolment-ready application.

6.2. Upon the Company receiving commission from the concerned University in relation to the enrolment of the relevant student, the Company shall intimate the AGENT PARTNER in writing of the same.

6.3. The Company shall pay the AGENT PARTNER a commission at a percentage of ("Commission"), in relation to the commission received by the Company in Clause 6.2. Exact Commercials have been shared with you over email. This is subject to periodic revision subject to Company's discretion. Any changes in the commission structure will always be notified by email. Provided however that, if the student, for any reason, does not pay the required tuition fees / or abandons the program for which admission has been procured, no remuneration shall be payable by the Company to the AGENT PARTNER.

6.4. Invoices raised by the AGENT PARTNER shall have the following information:

- **6.4.1.** Name of the student
- **6.4.2.** Institution ID of the student
- **6.4.3.** Name of the institution
- **6.4.4.** Title of the course
- **6.4.5.** Semester being claimed
- **6.4.6.** Amount due
- **6.4.7.** Full bank details of AGENT PARTNER

7. OWNERSHIP OF INTELLECTUAL PROPERTY

7.1. The AGENT PARTNER acknowledges that all rights, title and interest including rights in the Intellectual Property and to the results and proceeds in relation to the Intellectual Property without limitation on time period or geographical location hereby exclusively, irrevocably and unconditionally belong to and legally vest in the Company.

7.2. The AGENT PARTNER will not use any of the Company's trademark(s) ("Trademarks") without obtaining the prior written consent of the Company and after disclosing the use of Trademarks to the Company. In the event the Company provides its consent as aforesaid, the AGENT PARTNER, to the extent specified by the Company and according to the terms and conditions set out in Clause 7.3, shall have a non-exclusive and non-transferable revocable royalty-free license duration/validity of which shall be limited to the term of this Agreement.

7.3. Without prejudice to the above Clauses 7.1 and 7.2, AGENT PARTNER agrees and undertakes:

- **7.3.1.** to use Company's material ("Material") in a manner approved by the Company;
- **7.3.2.** not to alter or tamper with any Material;
- **7.3.3.** not to use Material in any way which might prejudice its distinctiveness or validity; and
- **7.3.4.** not to use any marks or names that are deceptively similar to or which resembles the Trademarks.

8. FRAUD AND DISHONEST PRACTICES

8.1. The Company shall take immediate corrective and preventive action if it becomes aware of the AGENT PARTNER being negligent, careless, or incompetent or being engaged in false, misleading, or unethical advertising and recruitment practices including practices that could harm the integrity of the student and/or University. The AGENT PARTNER has acknowledged under Clause 3, that documents submitted for the application purpose Services are not fraudulent and will not place the student's integrity at risk.

8.2. In the event the Company is of the opinion that any fraud and/or dishonest practice has been committed by AGENT PARTNER, the Company may terminate this Agreement in accordance with Clause 10.

9. TERM AND TERMINATION

9.1. This Agreement shall commence upon the date of execution and continue for an initial period of 2 years, unless terminated under Clause 8.2 or the Company cancels this Agreement in writing by giving 30 days' notice at the end of the first and subsequent terms.

9.2. Either Party may terminate this agreement immediately by giving written notice to the other Party if:

- **9.2.1.** the other Party commits a material breach of the agreement which, if capable of remedy, has not been remedied within 30 days after written notice is given to the other Party;
- **9.2.2.** the other Party ceases to hold a relevant license or authorization required in connection with this agreement under relevant legislation;
- **9.2.3.** the other Party has taken any step towards its winding up, dissolution or administration, compromise or arrangement with any third party (including creditors); or
- **9.2.4.** the other Party engages in conduct which causes or is likely to cause damage to the reputation of the Party, or its related entities or business partners, clients, or customers.

9.3. Upon termination of this Agreement, the AGENT PARTNER shall cease marketing and offering the Services and shall continue to abide by the obligation to refrain from sharing with any third party any of the Company's Confidential Information in accordance with Clause 11 below.

9.4. Unless terminated, this Agreement will automatically renew for a further period of 1 year.

10. CONFIDENTIALITY

10.1. Confidential information ("Confidential Information") shall mean any information disclosed by Company ("Disclosing Party") to the AGENT PARTNER ("Receiving Party"), in any form including without limitation documents, business plans, technical/financial/marketing/customer/business information, specifications, analysis, designs, drawings, data, computer programs, any information relating to personnel or affiliates of a party and include information disclosed by third parties at the direction of a Disclosing Party and marked as confidential within 15 days of such disclosure.

10.2. The AGENT PARTNER shall, during the subsistence of this Agreement and at all times thereafter, not disclose to any Person, directly or indirectly, the Confidential Information pertaining to the Company. The AGENT PARTNER shall be entitled to disclose such Confidential Information only after obtaining the prior written permission from the Company.

10.3. The AGENT PARTNER shall not be obligated to maintain confidentiality in respect of the Confidential Information which:

- **10.3.1.** is known to the public at large at the time of disclosure as is evidenced by written records;
- **10.3.2.** becomes known to the AGENT PARTNER from a source other than the Company who possesses the Confidential Information legally and without restriction on disclosure;
- **10.3.3.** is in the public domain or becomes in the public domain through no wrongful act of AGENT PARTNER;
- **10.3.4.** is disclosed with the prior written approval of the Company; and
- **10.3.5.** is disclosed pursuant to any judicial or governmental request, requirement, or order, provided that the AGENT PARTNER takes reasonable steps to give the Company sufficient prior notice in order to contest such request, requirement or order.

10.4. The AGENT PARTNER hereby agrees to keep secret and confidential the proprietary information made available to it during the subsistence of this Agreement. The AGENT PARTNER will take reasonable measures to maintain the confidentiality of the Company's Confidential Information, but never less than the standard of care that an ordinary prudent business would exercise to maintain the secrecy of its own Confidential Information.

11. NON-DISPARAGEMENT

The AGENT PARTNER shall not, during the term of this Agreement or at any time after the expiry of the Agreement, use derogatory remarks directly or indirectly for the Company or any other representative of the Company and shall not commit any act which shall bring the Company into public disrepute, contempt, scandal or ridicule and/or defames and/or disparages the Company, either directly and/or indirectly.

12. INDEMNIFICATION

The AGENT PARTNER shall indemnify and hold the Company, and its affiliates, employees, officers, directors and shareholders (collectively the "Indemnified Parties") harmless at all times from and against any and

all claims demands, losses, costs, damages, suits, judgments, penalties, expenses (including attorney fees), interest and liabilities of any kind or nature whatsoever to the extent that they are arising from any act, default or omission by the AGENT PARTNER and in particular (but not by way of limitation) against any such claim which results against the Indemnified Parties from the conduct by the AGENT PARTNER of its activities under this Agreement.

12.1. Without prejudice to the generality of the foregoing, the AGENT PARTNER agrees to indemnify and keep the Indemnified Parties always indemnified from and against any and all claims demands, losses, costs, damages, suits, judgments, penalties, expenses and liabilities of any kind or nature whatsoever arising out of:

- **12.2.1.** breach of any of the confidentiality, representations and warranties of the AGENT PARTNER or any breach or failure on the part of the AGENT PARTNER to fulfil any of the obligations, undertakings or covenants under this Agreement;
- **12.2.2.** any fraud, misrepresentation or negligence on part of the AGENT PARTNER to operate under this Agreement or otherwise;
- **12.2.3.** any infringement or passing off of the Intellectual Property subsisting in the Trademarks or any third-party intellectual property;
- **12.2.4.** breach of any applicable laws, rules, regulations by the AGENT PARTNER.

13. ENTIRE AGREEMENT AND MODIFICATION

This Agreement expresses the entire agreement between the Parties hereto which supersedes any other negotiations or agreement on the subject matter hereof and this Agreement shall not be modified in any way except by a written instrument signed by both Parties hereto.

14. DISPUTE RESOLUTION

All disputes, controversies, or claims arising out of or in connection with this Agreement (including its existence, validity, or termination) that cannot be amicably resolved shall be referred to and finally settled by arbitration in accordance with the Arbitration and Conciliation Act, 1996. The arbitration shall be conducted by a sole arbitrator appointed by mutual agreement of the Parties, or if no agreement is reached, by the Mumbai Centre for International Arbitration (MCIA). The arbitration shall take place in Mumbai, India. The award rendered by the arbitrator shall be final and binding on the Parties and may be enforced in any court of competent jurisdiction. The language to be used in the arbitral proceedings shall be English.

15. GOVERNING LAW

This Agreement and the interpretation of its terms, which are not defined herein, shall be governed by and construed in accordance with the laws of Mumbai, India and subject to the exclusive jurisdiction of the courts located in Mumbai, India.

16. RELATIONSHIP OF THE PARTIES

16.1. The relation between the AGENT PARTNER and Company will be that of principal to principal and not

principal and agent and the Company will not therefore be liable or responsible for acts or liability of the AGENT PARTNER or for any amount due and payable by the AGENT PARTNER to any other party. The AGENT PARTNER shall not enter into any contract on behalf of Company nor bind Company in any way. The AGENT PARTNER is not in any way a legal partner, an agent, subsidiary, employee and must not represent itself as such in any circumstances.

16.2. Nothing in this agreement shall create or deemed to create any relationship of agency, partnership or joint venture between the parties. The AGENT PARTNER assumes full responsibility or liability for and will hold the Company harmless from any loss, injury, claims or damages resulting from or claimed to result from acts of commission or omissions on the part of the AGENT PARTNER.

17. NOTICES

Any communications in connection with this Agreement must be given in writing and may be given in person, by post and, to the extent agreed by the Assignee, e-mail or any other electronic communication to the following address:

If to the Company:

UNIWIZER (POWERED BY EDUCRATS GLOBAL)

Address: ACACIA E- 1801, OMAXE R2, GOMTI
NAGAR EXTENSION, LUCKNOW- 226 002

Email: partners@uniwizer.io

If to the AGENT PARTNER:

[Agent Partner Name]

[Agency Registered Address]

18. MISCELLANEOUS

18.1. Warranty of power to enter Agreement. Each of the Parties warrants its power to enter into this Agreement and confirms having obtained all legal consents and approvals required to enter and perform this Agreement.

18.2. Reservation of Rights. All rights not specifically and expressly granted to the AGENT PARTNER by the Company by this Agreement are reserved to the Company.

18.3. Right to Assign and Novation. The AGENT PARTNER shall have no rights to assign or transfer any rights, privileges, obligations or entitlement under this Agreement to any person without the prior written consent of the Company. This Agreement and all rights under it may be assigned or transferred by the Company.

18.4. Waiver. Any forbearance delay or indulgence by any of the Parties hereto in enforcing any of the terms and conditions of this Agreement shall not prejudice or affect the rights and remedies such Party hereunder, nor shall any waiver of any breach hereof operate as a waiver of any subsequent breach and no waiver or variation of any terms and conditions of this Agreement shall be valid or have any effect unless the same be made in writing and signed by a director/trustee of the concerned party authorized for the purpose on behalf of such party.

18.5. Severability. Should any provision of this Agreement be declared by any court to be in conflict with the law or unenforceable, the validity and enforceability of the remainder of the Agreement shall not be affected thereby. In such an event, the offending provision shall be deemed not to be part of this Agreement and any resulting

necessary consequential amendment shall be deemed to be incorporated in this Agreement, save if it affects the Trademarks, when the Agreement may be terminated at the Company's sole election.

18.6. Copy of the Agreement. This Agreement is executed in duplicate. Each Party to the Agreement shall keep one copy each of this Agreement.

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE SET AND SUBSCRIBED THEIR RESPECTIVE HANDS AND SEAL THE DAY, MONTH AND YEAR FIRST HEREIN ABOVE WRITTEN:

SIGNED, SEALED AND DELIVERED

For and on behalf of the within named Company

UNIWIZER (POWERED BY EDUCRATS GLOBAL)

by the hands of its Authorized Signatory,

Name: Mrs. Juhi Upadhyay (Co-Founder)

SIGNED, SEALED AND DELIVERED

For and on behalf of the within named AGENT PARTNER

[AGENCY PARTNER NAME]

by the hands of its Authorized Signatory,

Name: